



Remuneration of Teachers (Scotland) Act 1967

1967 CHAPTER 36

An Act to make new provision for determining the remuneration of teachers in Scotland; and for purposes connected therewith. [28th June 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Secretary of State shall secure that, for the purpose of considering the remuneration payable to teachers by education authorities, there shall be one or more committees consisting of—

Committees to consider remuneration of teachers.

- (a) a chairman appointed by the Secretary of State as being an independent person;
- (b) persons nominated from time to time by such bodies as may be determined by the Secretary of State, being bodies appearing to him to represent education authorities;
- (c) persons nominated from time to time by such bodies as may be determined by the Secretary of State, being bodies appearing to him to represent teachers;
- (d) one or more persons nominated from time to time by the Secretary of State to represent him.

(2) The Secretary of State shall determine the number of persons to be nominated by the bodies mentioned in paragraphs (b) and (c) of the foregoing subsection.

(3) Subject to the following provisions of this section, the Secretary of State may from time to time vary or revoke any determination made by him under this section.

(4) A determination of the Secretary of State whereby a body which is for the time being represented on a committee constituted under this section will cease to be so represented (except in a case where that body will have ceased to exist before the time when the determination is to take effect) shall not have effect unless it is embodied in an order made by the Secretary of State.

(5) Any order made under the last foregoing subsection may be revoked by a subsequent order made by the Secretary of State.

(6) Any power to make orders under this section shall be exercisable by statutory instrument; and any order under subsection (4) of this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(7) The Secretary of State, either at the time when a committee is constituted under this section or at any subsequent time, may give directions specifying the descriptions of teachers whose remuneration any such committee are to consider and the descriptions of such remuneration.

Review of
remuneration
by committees.

2.—(1) It shall be the duty of each committee, whenever they think fit or are required by the Secretary of State to do so, to consider the relevant remuneration of teachers.

(2) Where, in consequence of such consideration a committee agree on any recommendations with respect to the relevant remuneration of teachers, they shall transmit those recommendations to the Secretary of State.

(3) Subject to the following provisions of this section, on the receipt of any recommendations of a committee under the last foregoing subsection the Secretary of State shall prepare a draft memorandum setting out the scales and other provisions required for determining the relevant remuneration of teachers, in the form in which, in his opinion, those scales and provisions should be so as to give effect to the recommendations of the committee.

(4) Where the Secretary of State has prepared a draft memorandum under the last foregoing subsection, he shall consult the committee in question with respect to the draft and shall make such modifications of the draft as are requisite for giving effect to any representations made by the committee with respect thereto; and he shall then—

(a) arrange for a memorandum setting out the requisite scales and other provisions in the form of the draft, or in that form as modified under this subsection, as the case may be, to be published by Her Majesty's Stationery Office, and

(b) make an order referring to that memorandum and directing that the relevant remuneration of teachers shall be determined in accordance with the scales and other provisions set out in the memorandum.

(5) If at the time when any recommendations of a committee are transmitted to the Secretary of State under subsection (2) of this section—

- (a) an order made under the last foregoing subsection is in force with respect to the relevant remuneration of teachers, and
- (b) it appears to the Secretary of State that effect could more conveniently be given to those recommendations by amending the scales and other provisions set out in the memorandum referred to in that order,

the Secretary of State, instead of preparing a new draft memorandum under subsection (3) of this section, may prepare a draft order setting out the amendments of those scales and other provisions which, in his opinion, are requisite for giving effect to the recommendations.

(6) Where the Secretary of State has prepared a draft order under the last foregoing subsection, he shall consult the committee in question with respect to the draft and shall make such modifications of the draft as are requisite for giving effect to any representations made by the committee with respect thereto; and the Secretary of State shall then make the order in the form of the draft, or in that form as modified under this subsection, as the case may be.

3.—(1) The Secretary of State shall make arrangements whereby, in such circumstances and subject to such exceptions as may be provided by the arrangements, matters in respect of which agreement has not been reached in a committee after they have been considered by the committee in accordance with the foregoing provisions of this Act may be referred to arbitration in such manner as may be so provided. Provision for arbitration.

(2) Before making any arrangements under the foregoing subsection in relation to a committee, the Secretary of State shall consult the bodies which are to be, or are, represented on the committee in accordance with any determination made by him in pursuance of subsection (1)(b) or (c) of section 1 of this Act which is for the time being in force.

(3) Any such arrangements may include provision for the appointment of arbiters by the Minister of Labour for the purposes of any reference under this section; and, where arbiters are so appointed, that Minister may pay to the arbiters such remuneration (whether by way of fees or otherwise) and such allowances as he may with the consent of the Treasury determine, and may provide accommodation or other facilities required for the purposes of any such reference.

(4) The Secretary of State may vary or revoke any arrangements made by him under subsection (1) of this section by new arrangements which shall be subject to subsection (2) of this section.

Action on
recommendations
of
arbiters.

4.—(1) Any recommendations of the arbiters, on a reference under section 3 of this Act with respect to any matters considered by a committee, shall be transmitted to the Secretary of State; and, except where those recommendations do not propose any change in the relevant remuneration of teachers as it then exists and subject to the next following subsection, subsections (3) to (6) of section 2 of this Act shall have effect in relation to the recommendations of the arbiters as if they were recommendations of that committee.

(2) If, in any case where any recommendations of arbiters have been transmitted to the Secretary of State under the foregoing subsection, each House of Parliament resolves that national economic circumstances require that effect should not be given to the recommendations, the provisions of section 2 of this Act referred to in the foregoing subsection shall not have effect as mentioned in that subsection.

(3) Where such a resolution has been passed by each House of Parliament, the Secretary of State, after consultation with the committee in question, shall determine what changes (if any) in the relevant remuneration of teachers as it then exists are appropriate in the circumstances, and, unless he determines that no such changes are appropriate, shall (subject to the next following subsection) proceed in accordance with subsections (3) and (4) of section 2 of this Act, or (where applicable) in accordance with subsections (5) and (6) of that section, as if the changes determined by him had been recommended by that committee under subsection (2) of that section.

(4) Subsections (4) and (6) of section 2 of this Act, as applied by the last foregoing subsection, shall each have effect with the substitution, for the words from “shall make” to “giving effect to”, of the words “may, if he thinks fit, modify the draft in consequence of”.

Effect of
orders as to
remuneration.

5.—(1) Where any order made under subsection (4) of section 2 of this Act is for the time being in force, then, subject to the next following subsection, remuneration to which the order applies shall be determined, and shall be paid to teachers by education authorities, in accordance with the scales and other provisions set out in the memorandum referred to in that order.

(2) Where at any time while an order under subsection (4) of section 2 of this Act (in this subsection referred to as “the principal order”) is in force, an order under subsection (6) of that section relating to remuneration to which the principal order

applies (in this subsection referred to as “ the amending order ”) comes into force, then, at any time while the amending order is in force, remuneration to which the principal order applies shall be determined, and shall be paid to teachers by education authorities, in accordance with the scales and other provisions set out in the memorandum referred to in the principal order as amended by the amending order.

(3) In this section any reference to subsection (4) or subsection (6) of section 2 of this Act includes a reference to that subsection as applied by section 4 of this Act.

6. Where the scales and other provisions set out in a memorandum to which an order made under section 2, or that section as applied by section 4, of this Act refers do not apply to a teacher appointed by an education authority, the education authority may pay to that teacher such remuneration as they think fit.

Remuneration of teachers where scales do not apply.

7. There shall be paid out of moneys provided by Parliament—

Financial provisions.

(a) any increase attributable to this Act in the sums payable out of moneys so provided under any enactment relating to local government in Scotland;

(b) any increase attributable to this Act in the sums payable out of moneys so provided under any other enactment in respect of administrative expenses incurred by the Secretary of State;

(c) any expenses of the Minister of Labour in pursuance of section 3 of this Act.

8.—(1) Any power to make an order under section 2 of this Act shall be exercisable by statutory instrument.

Supplementary provisions as to orders relating to remuneration and repeals.

(2) Any order made under that section may be revoked by a subsequent order thereunder.

(3) Any order under that section may be made with retrospective effect to any date specified in the order, and the remuneration of teachers to whom the order applies shall be deemed to have been payable accordingly:

Provided that nothing in this subsection shall be construed as authorising the remuneration of any teacher to be reduced retrospectively.

(4) Section 83 of the Education (Scotland) Act 1962 and 1962 c. 47. section 2 of the Education (Scotland) Act 1963 (regulations 1963 c. 21. as to teachers' salaries) shall cease to have effect on the coming into operation of an order made under section 2 of this Act, and any regulations made under the said section 83 may be revoked by such an order.

(5) In this section any reference to an order made under section 2 of this Act includes a reference to an order made under that section as applied by section 4 of this Act.

Interpretation. **9.—**(1) In sections 2 to 4 of this Act “committee” means a committee constituted under section 1 of this Act, and “the relevant remuneration of teachers”, in relation to such a committee, means the remuneration which, in accordance with any directions under section 1(7) of this Act which are for the time being in force, that committee are required to consider.

(2) Except in so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended or extended by or under any other enactment.

Short title, construction, citation and extent. **10.—**(1) This Act may be cited as the Remuneration of Teachers (Scotland) Act 1967.

(2) The Education (Scotland) Acts 1939 to 1965 and this Act shall be construed as one, and those Acts and this Act may be cited together as the Education (Scotland) Acts 1939 to 1967.

(3) This Act shall extend to Scotland only.